



## Notification Waiver Determination

### Energy Bay - rights to install and operate embedded networks and other assets from Centuria Capital Group members

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| <b>Acquisition</b>           | <p>Energy Bay Kappa Fund Pty Ltd, as trustee for the Energy Bay Kappa Fund (<b>Energy Bay</b>), applied for a notification waiver in respect of its proposed acquisition of:</p> <ul style="list-style-type: none"><li>a. energy infrastructure assets and the exclusive right to operate existing embedded networks at 49 sites,</li><li>b. energy infrastructure assets and the exclusive right to install and operate embedded networks at a further 211 sites, and</li><li>c. first and last rights of refusal to acquire analogous rights in respect of any further sites of the kind described in the transaction documents,</li></ul> <p>from various subsidiaries of the Centuria Capital Group (the <b>CCG Members</b>), which is comprised of Centuria Capital Limited (<b>CNI</b>) and Centuria Funds Management Limited (<b>CFML</b>), as described in the transaction documents provided as part of the application (the <b>Acquisition</b>).</p> |
| <b>Determination</b>         | <p>The Australian Competition and Consumer Commission has determined under section 51ABV(1)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) not to make the notification waiver determination applied for.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
| <b>Date of determination</b> | <p>7 May 2026</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                              |

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| <b>Parties to the Acquisition</b> | <p>The acquirer, Energy Bay, is a part of Energy Bay Group, which is a distributed energy infrastructure company operating embedded networks at large commercial and industrial sites in New South Wales (<b>NSW</b>), Australian Capital Territory (<b>ACT</b>), Western Australia (<b>WA</b>), Victoria (<b>VIC</b>) and Queensland (<b>QLD</b>). Energy Bay Group also owns Diamond Energy Pty Ltd, an electricity retailer that operates in all National Electricity Market (<b>NEM</b>) jurisdictions.</p> <p>The vendors, the CCG Members, are subsidiaries of the Centuria Capital Group, which is comprised of CNI and CFML. CNI is an ASX-listed funds manager that creates, manages and invests in listed and unlisted real estate funds, each of which holds properties for third party investors. CFML is the responsible entity for the Centuria Capital Fund.</p> <p>In each of NSW, ACT, VIC, QLD, South Australia, and WA, the CCG Members:</p> <ul style="list-style-type: none"><li>a. operate embedded network infrastructure,</li><li>b. engage in behind the meter generation and storage at their embedded network sites, and</li></ul> |
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|                                      | <p>c. supply and sell electricity to commercial tenants connected to their embedded networks.</p> <p>(together, <b>Embedded Network Services</b>). Through the Acquisition, Energy Bay Group will increase its share of supply of Embedded Network Services in WA and the NEM.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                         |
| <b>Explanation for determination</b> | <p>In making this notification waiver determination, the Australian Competition and Consumer Commission (<b>ACCC</b>) has considered the information provided with the notification waiver application and certain publicly available information, and had regard to the factors in section 51ABV(2)(b) of the Act.</p> <p>Based on the information currently before it, the ACCC considers that the Acquisition may raise competition issues. In particular:</p> <ul style="list-style-type: none"> <li>a. there is meaningful horizontal overlap between Energy Bay Group and the CCG Members in the supply of Embedded Network Services in WA and the NEM, and Energy Bay appears to be one of the larger suppliers of Embedded Network Services in the NEM</li> <li>b. the extent to which Energy Bay Group is likely to be constrained by alternative suppliers of Embedded Network Services post-acquisition is uncertain</li> <li>c. there is a vertical relationship between the Embedded Network Services supplied by the parties and the electricity retailing operations of Energy Bay Group's subsidiary, Diamond Energy, and the impact of the Acquisition on Energy Bay Group's ability and/or incentive to foreclose rivals warrants further consideration.</li> </ul> <p>The ACCC considers that these potential competition issues warrant consideration through the notification process, including via consultation with third parties.</p> <p>Given the above, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the Acquisition meeting the notification thresholds. However, the ACCC notes that based on the Australian revenue and transaction value figures provided, the Acquisition may meet the monetary notification thresholds in ss 2-1 and 2-3 of the <i>Competition and Consumer (Notification of Acquisitions) Determination 2025</i>.</p> <p>For these reasons, the ACCC has determined not to make the notification waiver determination applied for.</p> <p>The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition.</p> <p>For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's <a href="#">interim guidance on notification waivers</a> and <a href="#">merger assessment guidelines</a>.</p> |

**Determination made by a division of the Commission constituted by a direction issued pursuant to section 19 of the Act**